SOBHA INDRAPRASTHA APARTMENT OWNERS ASSOCIATION (Regd.)

19/2, Near Minerva Mills, Compound, Opposite Sujatha Theatre, Gopalpura, Bangalore 560023.
Email bom@siaoa.co.in , admin@siaoa.co.in , accounts@siaoa.co.in Phone No +91- 77957 00320
GSTIN - 29ABNAS7674R2ZZ

Date : 24 August 2023

To :
All Owners and Residents of Sobha Indraprastha Apartments

Imposition of Penalties for Violation of Rules, Misconduct, Indiscipline or Committing of an Offence in Sobha Indraprastha Apartments Complex (SIP)

Dear All,

The following new Clause was inserted in SIAOA Deed of Declaration dated 02.08.2019 in Exhibit - "B" i.e. Bye Laws of the Sobha Indraprastha as Amendment No.76 passed at the Special General Body Meeting of SIAOA held on 18.09.2022 as per the registered Deed of Amendment made and executed on 11.10.2022 ("the Effective Date") :

"Quote:

61) MISCONDUCT:

61.1) Every member/resident of the Association shall adhere to certain discipline in the Condominium. Any member/resident who violates or fails to adhere to certain discipline imposed upon them by the Association in day to day administration shall be liable for penalty and/ or punitive action besides liable for prosecution both under civil and criminal laws of the land.

61.2) A disciplinary committee may be formed by the Board and the do's and don'tsof the member/resident shall be provided to all the members/residents.

61.3) Every member/resident shall conduct themselves in a dignified manner inside the Condominium. Any members/persons claiming to be under the member shall Have right of expressing their grievances / feelings / suggestions to the Board in writing. No member / residents shall use such un-parliamentary words against any of the other members/residents in the condominium or against any Board of Manager of the Association. No person shall be allowed to use abusive language or offensive gesture or no person shall cause any remarks which amount to character assassination of any member/residents/office bearers including Board of Managers-76*.

Inserted amendment no.76* passed in SGM on 18.09.2022." Unquote

Accordingly, the BoM at the Meeting held on Tuesday, 22 August 2023 has decided to impose the following penalties on the Owners / Residents residing in Sobha Indraprastha Apartments Complex (SIP) for any violations of rules, acts of indiscipline / misconduct or committing of an offence within the premises of SIP. For any such violation or conduct or act committed by any guests, visitors or invitees of the Owners / Residents in SIP, the respective Owner / Resident shall be liable for the penalty / action.

Please note:

a. In addition to the imposition of the applicable penalties, additional suitable actions like Police complaint, Legal action, prosecution, etc. may be taken both under civil and criminal laws of India and or any Law / Rules of Karnataka State depending on the gravity of the violation / misconduct.

b. In case of causing any harm / injury to any person or property of anyone, if the situation warrants, the concerned person will have to bear all related costs, charges, fees, etc. and face other consequences, as applicable.

c. In case of any damage to SIAOA property / assets / installations / fitting, etc., the cost of the parts / items with labour charges will be recovered in full from the concerned Owner / Resident in addition to the recovery of the imposed penalty.

d. The penalty imposed by BoM must be paid by the concerned Owner / Resident within 3 days of issue of the Invoice by SIAOA. Any failure to pay the penalty will attract interest @ 18% from the due date till the actual date of payment. BoM has the right to recover the penalty with interest, if applicable, by all means including adjustment from the Maintenance Charges, etc. BoM may also discontinue the amenities and other facilities for non-payment of penalties after a proper notice of hearing to the concerned Owner / Resident.

The Owners / Residents are requested not to make direct calls to any BoM Member for any complaint / issue. Please first inform the Estate Manager or SIAOA Office staff or the Security Head and send an email to BoM bom@siaoa.co.in. All Owners / Residents are also requested not to misbehave with BoM or any BoM Member or make any offensive / derogatory comments in person or through any social media platforms, etc.

THESE PENALTIES / ACTIONS ARE IMPLEMENTED WITH IMMEDIATE EFFECT.

For Sobha Indraprastha Apartment Owners Association (SIAOA)

Officiating Secretary BoM
Date : 24 August 2023

Sobha Indraprastha Apartment Owners Association

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No.	Description Violation of Rules / Details of the Incident caused by any resident, guests or visitor to any apartment	Penalty Amount Per Violation / Incident Rs.
1.	Parking of 2 / 4 Wheeler In others parking space / visitors parking / no-parking areas or unnecessary / excessive honking in SIP	Rs.200 for 2 Wheeler / Rs.500 for 4 Wheelers - per day
2	Spitting in, at or from anywhere in common areas / passage / staircase or defacing the lifts, walls, pillars, etc.	1,000
3.	Keeping / storing any private furniture, fixtures, equipment etc. in common area/ passage. SIAOA also has a right to remove/discard any such item not removed despite a notice.	1,000
4.	Blocking / obstructing of free movement of vehicles or improper parking of vehicles causing obstruction / inconvenience to others	1,000
5	Washing of 2 / 4 Wheelers with excessive water (only dry washing is allowed)	1,000
6.	Feeding dogs at the main gate or pigeons or other animals/birds in common areas/garden	1,000
7.	Plucking of flower(s) or taking away / removal of any plants, flowerpots, pebbles, leaves, seeds, fruits, etc. from garden/ common areas	1,000
8.	Throwing / dropping of debris, food items, cigarette buds, wrappers, pouches, papers, etc. from windows / balconies of an apartment or any other area or anywhere in SIP	1,000
9.	Washing of windows/balcony by splashing water or throwing of water from windows or balcony or from any common area	1,000
10	Non-segregation (dry & wet) as per the BBMP Rules / SIAOA Policy, if any.	1,000
11.	Parking of cycles or keeping any household item in the common passage or common area or keeping household items in car parking space	1,000 per day
12.	Violation of pet handling Policy/ Rules	2,000
13.	Littering, spitting or keeping of bottles, junk, leftovers, garbage, etc. In the common areas, passage, staircase, fire buckets, etc.	2,000
14.	Drawing water, power connections, cables, etc. from common passage / areas or other surfaces or damaging or removing any such connection / installation / item, etc.	2,000
15.	Smoking, drinking or indecent behaviour in common areas	2,000
16.	Not registering a tenant with SIAOA, allowing any visitor without MyGate permission, forcing security to allow an outside vehicle without entry in record book	2,000
17.	Doing any civil, furniture, electrical or other work in an apartment before or after the schedule time (9 am to 6 pm) or doing a noisy work during the silence period (2 to 4 pm) or workers staying in the apartment beyond the fixed hours or on Sundays and Public Holidays or getting workers in private vehicles for doing any such work in violation of rules	5,000
18.	Playing of loud music, partying with loud noise or causing any nuisance / inconvenience to any residents in an apartment or playing music / partying in common area / passage. Note : Playing of loud music or making loud noise after 10.00 pm is not allowed by law. SIAOA / Community Functions are excluded in this regard	5,000
19.	Use of apartment for any commercial or office purpose or for storing goods, materials, etc. That causes disturbances or nuisance to the residents or creates any risk for the building or residents. Note – use of an apartment for any unlawful activity is against the law, subject to legal & police actions.	5,000
20.	Intimidating, insulting or abusing BoM or any BoM Member or SIAOA employees, security, house-keeping or support staff or SIAOA vendor / service provider	5,000
21.	Visiting Or Accessing Prohibited Areas Like Terrace, Helipad, 36th Mezzanine Floor, Etc.	5,000

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22.	From an apartment or any common area in SIP, throwing of bottles, sharp objects, metal, hard Items, etc. which may cause an injury to any person or damage any property	10,000
23.	Setting up of buffet counters, storing of cooking or serving utensils, etc. in the common areas, passage or bridge connecting two wings in SIP	10,000
24.	Removal / Tempering with / Damaging any common pipes, wires, connections, fittings, Installations, etc. including lampposts, fire fighting equipment & installations or breakage / damage to SIAOA property / assets / roads, walls, installation, etc.	Cost of the items / parts with repair charges + 10,000
25.	Tempering with / removal / alteration of fire alarm system and / or water sprinklers installed by Sobha Ltd. in an apartment or in the passage / common area	25,000
26.	Cooking of food items or causing of fire for any purpose in common area/ passage/bridge	25,000
27.	Making any major alterations including change of flooring, structural changes, electrical wiring, plumbing or damage to any beam / pillar / structure in an apartment or cladding of walls with tiles, etc.	1,00,000

For Sobha Indraprastha Apartment Owners Association (SIAOA)

Officiating Secretary BoM
Date : 24 August 2023

Sobha Indraprastha Apartment Owners Association